

§ UN GLOBAL DIALOGUE ON AI GOVERNANCE · GENEVA, JULY 2026

Governing by Design: the UN's AI priorities, read against Kenya's AI Bill

193 nations just heard four priorities for AI governance, and a new global Child Safety Pledge. Kenya is drafting its own answer at the same time — here's where the two align, and where they don't yet.

ANALYSIS9 MIN READAI GOVERNANCE & POLICY

BY PATRICK MUCHANGI, FOUNDER & ADVOCATE — MUCHANGI PATRICK & CO. ADVOCATES · PUBLISHED JULY 2026

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On 6 July 2026 in Geneva, UN Secretary-General António Guterres opened the first Global Dialogue on Artificial Intelligence Governance with a blunt warning: "an experiment is being run on our own societies — without a plan, and without consent." All 193 UN Member States, including Kenya, had a seat at that table. This piece reads Kenya's own Artificial Intelligence Bill, 2026 directly against the priorities the Secretary-General laid out.

§1 Four priorities from Geneva

- §1 **Safety.** Common baselines for frontier systems, and a new AI Child Safety Pledge: prove a system is safe before a child can reach it, zero tolerance for AI-generated child sexual abuse material, and never leave a child in crisis without real human support.
- §2 **Red lines.** Human rights are non-negotiable; in justice, healthcare and policing, machines may inform but humans must decide — and answer.
- §3 **Capacity.** Private AI infrastructure investment approached half a trillion dollars last year; public investment for developing countries is "a rounding error." A new Global Network for AI Capacity Building and a forthcoming Global Fund for AI aim to close that gap.
- §4 **Transparency.** An AI Environmental Transparency Initiative calling for public disclosure of data centres' carbon, water and land footprint, and renewable power by 2030.

"When a child is harmed, the answer must never be 'the algorithm did it.'" — UN Secretary-General António Guterres

§2 Where Kenya's Bill already answers the call

✓ Four-tier risk classification

A domestic attempt at exactly the baseline-setting Guterres called for.

✓ **Mandatory human rights impact assessments**

A direct embodiment of the "red lines" principle.

✓ **Data Protection Act, s.35**

Already bars decisions made solely on automated processing.

✓ **Deepfake criminalisation**

A partial response to the erosion-of-truth warning.

§3 **Five gaps the Geneva speech exposes**

01

No AI-specific child safety duties

—

Nothing as specific as the three-rule pledge: pre-deployment child-safety testing, CSAM detection-and-removal, and a crisis-response protocol.

BUSINESS IMPACT

Kenyan child online safety instruments remain fragmented, with no AI-native duties for systems children can reach.

02

Silence on power and infrastructure concentration

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No statutory link to the UN's capacity-building architecture

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No environmental transparency obligations

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05

Safety testing still deferred to future regulation

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§4 **Five amendments worth making**

- ☐ **Introduce a dedicated Child AI Safety schedule**, importing the three-rule pledge directly and interlocking with the CA guidelines and KICA Amendment Bill.

- ☐ **Add an AI-infrastructure-dependency disclosure requirement** for high-risk systems, feeding a national concentration-risk register.

- ☐ **Write Kenya's UN capacity-building participation into the Bill**, mandating pursuit of Global Network nomination and Global Fund access.

- ☐ **Introduce environmental disclosure obligations** for AI infrastructure operating at scale in Kenya.

- ☐ **Require binding risk-classification criteria** in the primary legislation, not deferred regulations.

§5 The bottom line

Guterres closed his Geneva remarks with a line worth holding onto: "we may be the last generation able to set the terms on which humanity and machines coexist... the door is still open. But it will not stay open long." Kenya has already opened that door domestically. The task now is finishing the walk through it.

WHERE THIS GOES NEXT

The Global Dialogue reconvenes in New York next year. Kenya's AI Bill still needs to clear the **National Assembly** — a parallel window in which these gaps can still be closed.

HOW THIS TOUCHES YOUR DATA PROTECTION EXPOSURE

An AI governance framework doesn't sit apart from data protection law — most AI systems in Kenya run on personal data, which means your obligations under the Data Protection Act, 2019 are already live even before the AI Bill passes.

Muchangi Patrick & Co. Advocates advises boards, AI deployers, and startups on data protection compliance, AI governance readiness, and cross-border data flows. If you're building or deploying AI systems in Kenya, we can help you map your exposure before the regulator does it for you.

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This analysis draws on the UN Secretary-General's remarks as delivered at the opening of the first Global Dialogue on Artificial Intelligence Governance, Geneva, 6 July 2026, alongside prior commentary on Kenya's Artificial Intelligence Bill, 2026 and the Data Protection Act, 2019.

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